

Papua New Guinea 2024 Human Rights Report

Executive Summary

There were no significant changes in the human rights situation in Papua New Guinea during the year.

Significant human rights issues included credible reports of: arbitrary or unlawful killings; trafficking in persons, including sex trafficking and forced labor; and extensive child labor, including the worst forms of child labor.

The government took some credible steps to identify and punish officials who committed human rights abuses, but impunity remained a widespread problem.

There were reported abuses by private entities and criminal gangs. Authorities investigated and prosecuted some cases involving these groups.

Section 1. Life

a. Extrajudicial Killings

There were several reports the government or its agents committed arbitrary or unlawful killings during the year.

In September, the *Post Courier* reported authorities were investigating 27 police officers for alleged police brutality in the National Capital District and

in Milne Bay Province. The allegations included the shooting and killing of three men and a child, age 13, during an eviction exercise at the Nine-Mile settlement outside Port Moresby on September 19.

b. Coercion in Population Control

There were no reports of coerced abortion or involuntary sterilization on the part of government authorities.

Section 2. Liberty

a. Freedom of the Press

The constitution provided for freedom of expression, including for members of the press and other media, and the government generally respected this right. An independent media, an effective judiciary, and a functioning democratic political system combined to promote freedom of expression, including for media members.

Physical Attacks, Imprisonment, and Pressure

Journalists were sometimes subjected to harassment, intimidation, or violence by police or supporters of parliamentarians for their reporting.

In May, the *National* reported supporters of Goroka District Member of Parliament Aiye Tambua, who faced 26 charges of alleged sexual offenses

committed against his family members, threatened and intimidated journalists covering the case in Port Moresby. Tambua's supporters warned they would smash cameras if photographs or videos were taken of him.

Censorship by Governments, Military, Intelligence, or Police Forces, Criminal Groups, or Armed Extremist or Rebel Groups

Publishers and journalists were generally aware of what content the government would object to and at times practiced self-censorship due to publications' reliance on government-purchased advertising.

b. Worker Rights

Freedom of Association and Collective Bargaining

The law provided for workers' rights to form and join independent unions, bargain collectively, and conduct legal strikes. The government had limited influence over trade union formation and registration. The law required unions to register with the Department of Labour and Industrial Relations (Labour Department). An unregistered union had no legal standing and could not operate effectively.

Although the law provided for the right to strike, the government could, and often did, intervene in labor disputes, forcing arbitration before workers could legally strike or refusing to grant permission for a secret ballot vote on strike action. Some union leaders complained the Labour Department's

refusal to allow for votes on strike action constituted undue government influence. By law, the government had discretionary power to intervene in collective bargaining by canceling arbitration awards or declaring wage agreements void when deemed contrary to government policy. In response to police walking off the job in protest on January 10 and the violence and looting that followed, parliament amended the law on September 6 to ensure the provision of essential state services during any strike action.

The law prohibited both retaliation against strikers and discrimination by employers against union leaders, members, and organizers. The law did not provide for reinstatement of workers dismissed for union activity. In cases of retaliation or unlawful dismissal for union activity, the court could fine an employer and could order the reinstatement of the employee and reimbursement of any lost wages. If an employer failed to comply with such directives, the court could order imprisonment or fines until the employer complied. Judicial proceedings were subject to lengthy delays.

The Labour Department was responsible for enforcing the law but did not do so effectively. Penalties were commensurate with those for other analogous violations. With two labor inspectors allocated per province and inadequate resources, inspectors usually monitored and enforced the law on an ad hoc basis. The Labour Department did not always act to prevent retaliation against strikers or protect workers from antiunion discrimination, which remained widespread in the logging sector and in state-owned

enterprises. Observers attributed its ineffectiveness to insufficient manpower and resources. There were no reports of penalties being applied against violators of laws protecting freedom of association and collective bargaining.

Unions were generally independent of both the government and political parties, whose influence diminished from previous years. Employees of some government-owned enterprises went on strike on several occasions, primarily to protest privatization policies, terminations, and appointments of managers or board members, or in pay disputes.

Forced or Compulsory Labor

See the Department of State's annual *Trafficking in Persons Report* at <https://www.state.gov/trafficking-in-persons-report/>.

Acceptable Work Conditions

Wage and Hour Laws

The law provided for a minimum wage for all sectors, which was above the official poverty level estimate. The law regulated minimum wage levels, allowances, rest periods, holiday leave, and overtime work. The law limited the workweek to 42 hours per week in urban areas and 44 hours per week in rural areas and provided for premium pay for overtime work.

Occupational Safety and Health

The government set appropriate occupational safety and health (OSH) standards and was required by law to inspect work sites on a regular basis. The law did not specify protection for employees who sought to remove themselves from conditions they deemed hazardous. In the case of a second or subsequent violation of wage or safety and health law, the employer was liable to a fine for each day or part of each day during which the offense continued. When an employer failed to obey an order, direction, or requirement, the court could order imprisonment until the directive was obeyed.

Wage, Hour, and OSH Enforcement

The government did not effectively enforce minimum wage, overtime, and OSH law and rarely responded to worker complaints. Penalties were not commensurate with those for similar crimes, such as fraud or negligence. Penalties were rarely applied against violators. The Labour Department was responsible for enforcing minimum wage, work hours, and OSH laws. The number of labor inspectors was likely insufficient to enforce compliance. Inspectors had the authority to make unannounced visits and levy sanctions. Violations of wage, overtime, and OSH law and regulations were common in the logging, mining, agricultural, and construction sectors due to the government's lack of enforcement capacity and corruption. The logging

industry was known for extremely low wages and poor working conditions, including cramped and unhygienic worker housing. Workers in the mining sector were also subjected to hazardous and exploitative conditions, including exposure to toxic metals such as mercury. The government did not report whether OSH experts actively identified unsafe conditions.

An estimated 80 percent of the country's workforce was employed in the unregulated informal sector, primarily in subsistence agriculture and informal sales of betel nut, cigars, basic groceries, arts and crafts, and garments. Informal sector workers were not covered by wage, hour, OSH, and other labor laws and inspections.

c. Disappearance and Abduction

Disappearance

There were no reports of enforced disappearances by or on behalf of government authorities.

Prolonged Detention without Charges

The constitution prohibited arbitrary arrest and detention and provided for the right of any person to challenge the lawfulness of their arrest or detention in court. The government generally observed these requirements.

Police frequently detained citizens arbitrarily without evidence. In some cases, police detained citizens without charges to steal from them.

Although the constitution provided for a right to trial “within a reasonable time” and pretrial detention was subject to strict judicial review through continuing pretrial consultations, lengthy pretrial detention was a problem, due to limited police resources, the slow pace of police investigations, a high crime rate, bail restrictions for certain crimes, and infrequent court sessions. According to Correctional Services’ data, detainees could wait up to 10 years before trial, sentencing, or release. Pretrial detention frequently equaled or exceeded the maximum sentence for alleged crimes.

d. Violations in Religious Freedom

See the Department of State’s annual *International Religious Freedom Report* at <https://www.state.gov/religiousfreedomreport/>.

e. Trafficking in Persons

See the Department of State’s annual *Trafficking in Persons Report* at <https://www.state.gov/trafficking-in-persons-report/>.

Section 3. Security of the Person

a. Torture and Cruel, Inhuman, or Degrading Treatment or

Punishment

The constitution prohibited such practices, but there were credible reports government officials employed them. Individual police and correctional services officers reportedly beat and otherwise abused citizens or suspects before or during arrests, during interrogations, and in pretrial detention.

In September, the *Post Courier* reported on allegations of police misconduct that included the beating of a doctor in Milne Bay in September by three officers whose prosecution was pending in court as of December. Milne Bay Province residents were frustrated with local officials who they believed were not conducting investigations into 14 other instances of police brutality in September.

High levels of violence and property destruction often marked police raids, searches for suspected criminals, and forced evictions of illegal squatter settlements.

Public concern regarding police and military violence against civilians and security forces' impunity persisted.

b. Protection of Children

Child Labor

See the Department of Labor's *Findings on the Worst Forms of Child Labor* at

<https://www.dol.gov/agencies/ilab/resources/reports/child-labor/findings/>.

Child Marriage

The legal age for marriage was 18 for boys and 16 for girls. There were younger legal marriage ages (16 for boys and 14 for girls) with parental and court consent. In January, Human Rights Watch's annual *World Report* stated the government failed to take effective action to end child marriage; 27 percent of girls and 4 percent of boys were married before 18.

Customary and traditional practices allowed marriage of children as young as age 12, and early marriage was common in many traditional, isolated rural communities. Child brides frequently were taken as additional wives or given as brides to pay family debts and often served as domestic servants. Child brides were particularly vulnerable to domestic abuse, and there were no government prevention or mitigation efforts. Pregnant girls were often forced into marriages, which also precluded their return to school.

c. Protection to Refugees

The government cooperated with the Office of the UN High Commissioner for Refugees, the International Office for Migration, and other humanitarian organizations in providing protection and assistance to refugees, returning refugees, or asylum seekers, as well as other persons of concern.

On September 6, the Catholic Bishops Conference of Papua New Guinea and

the Solomon Islands refugee director reported an estimated 10,000 refugees from West Papua, Indonesia, were living in camps that had become villages in Port Moresby.

Asylum seekers and refugees were unable to access medical care or accommodation due to inability to cover the costs. They also did not have access to educational opportunities and faced significant barriers to obtaining employment.

Provision of First Asylum

The law provided for granting asylum or refugee status, and the government had a system for providing protection to refugees.

The government provided temporary protection to persons from Indonesia's Papua region who might not qualify as refugees. According to government estimates, more than 10,000 refugees from Indonesia's Papua region were living in the country. The country also welcomed non-Melanesian refugees, including those who arrived independently and those processed under regional arrangements.

Resettlement

Approved asylum claimants could settle permanently in the country and, after eight years, apply for citizenship. Indonesian Papuans could apply for Papua New Guinea citizenship without the waiting period or citizenship fee.

d. Acts of Antisemitism and Antisemitic Incitement

There was a very small Jewish community in Port Moresby. There were no known reports of antisemitic incidents.